

RESOLUTION No. 25-259

A RESOLUTION OF THE MAYOR AND THE CITY COUNCIL OF THE CITY OF DORAL, FLORIDA, APPROVING THE COLLECTIVE BARGAINING AGREEMENT BETWEEN THE CITY OF DORAL AND THE SOUTH FLORIDA POLICE BENEVOLENT ASSOCIATION FOR POLICE LIEUTENANTS; AUTHORIZING THE CITY MANAGER TO EXECUTE THE AGREEMENT; PROVIDING FOR IMPLEMENTATION; PROVIDING FOR INCORPORATION OF RECITALS; AND PROVIDING FOR AN EFFECTIVE DATE

WHEREAS, the South Florida Police Benevolent Association (“PBA”) represents a bargaining unit consisting of the City of Doral’s (the “City”) police lieutenants; and

WHEREAS, the City and PBA have tentatively agreed to the terms of a collective bargaining agreement, including new pay steps for the City’s police lieutenants covering the period October 1, 2025, to September 30, 2028, which is attached hereto as Exhibit “A” (the “CBA”); and

WHEREAS, the City was able to reach agreement with the bargaining unit to implement the CBA retroactive to October 1, 2025; and

WHEREAS, the City administration has recommended that the City Council approve the CBA and authorize the City Manager to execute same; and

WHEREAS, the Mayor and City Council find that approval of the CBA is in the best interest of the City.

NOW, THEREFORE, BE IT RESOLVED BY THE MAYOR AND THE CITY COUNCIL OF THE CITY OF DORAL, FLORIDA, AS FOLLOWS:

Section 1. Recitals. The above recitals are confirmed, adopted, and incorporated herein and made a part hereof by this reference.

Section 2. **Ratification.** The CBA, attached hereto as Exhibit "A", are hereby approved.

Section 3. **Authorization.** The City Manager is hereby authorized to execute the CBA on behalf of the City.

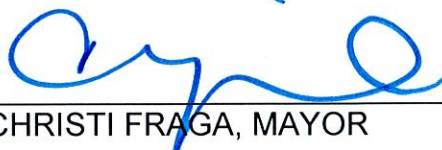
Section 4. **Implementation.** The City Manager and City Attorney are hereby authorized to take such action as may be necessary to implement the provisions of this Resolution.

Section 5. **Effective Date.** This Resolution shall take effect immediately upon adoption.

The foregoing Resolution was offered by Councilmember Reinoso who moved its adoption. The motion was seconded by Councilmember Pineyro and upon being put to a vote, the vote was as follows:

Mayor Christi Fraga	Yes
Vice Mayor Digna Cabral	Yes
Councilman Rafael Pineyro	Yes
Councilwoman Maureen Porras	Yes
Councilwoman Nicole Reinoso	Yes

PASSED AND ADOPTED this 12 day of November, 2025.



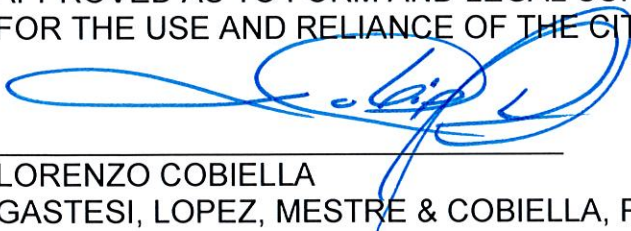
CHRISTI FRAGA, MAYOR

ATTEST:



CONNIE DIAZ, MMC
CITY CLERK

APPROVED AS TO FORM AND LEGAL SUFFICIENCY
FOR THE USE AND RELIANCE OF THE CITY OF DORAL ONLY:



LORENZO COBIELLA
GASTESI, LOPEZ, MESTRE & COBIELLA, PLLC
CITY ATTORNEY

EXHIBIT “A”

AGREEMENT
BETWEEN
CITY OF DORAL, FLORIDA

AND

DADE COUNTY POLICE BENEVOLENT ASSOCIATION, INC.

(Police Lieutenants)

October 1, 2025 – September 30, 2028

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ARTICLE 1
PREAMBLE

THIS AGREEMENT, between the CITY OF DORAL, Florida (the "City") and the Dade County Police Benevolent Association, Inc. ("the PBA").

1. The following terms have the following meaning:

All reference to **City** means the CITY OF DORAL

All reference to **City Manager** means the City Manager or the City Manager's designee.

All references to **Management** means the City Manager or the City Manager's designee

All reference to **PBA** means the Dade County Police Benevolent Association, Inc.

Reference to **day** means calendar day when it is used to measure the time in which an act must occur.

When day is used in reference to the accrual or use of a benefit (such as sick leave, holiday leave or vacation leave), it means one shift, as assigned, regardless of the amount of shift hours.

All reference to **members or employee(s)** means bargaining unit member(s) regardless of dues paying status.

All reference to **"he"** means he/she; all reference to **"his"** means his/hers.

2. This Agreement sets forth the parties' agreement regarding wages, benefits and conditions of employment for bargaining unit employees.

ARTICLE 2
RECOGNITION

1. The City recognizes the PBA as the bargaining agent for the following bargaining unit of the City's employees employed in the CITY OF DORAL Police Department.

INCLUDED: All employees of the CITY OF DORAL in the following classifications: police lieutenant.

EXCLUDED: All other employees of the CITY OF DORAL and excluding specifically the following classifications: Chief of Police, Deputy Chief of Police, major, captain, police officer, police sergeant, any other officer assigned to conduct internal affairs investigations on a full-time basis, and all other City employees.

2. Nothing herein limits the right of either party to seek unit clarification from the Florida Public Employees Relations Commission to modify the positions included or excluded in the bargaining unit.

ARTICLE 3
AT WILL EMPLOYMENT

1. All employees are “at will” employees of the City as provided in Section 2.1 of the 2012 EPPM as may be amended from time to time.¹
2. The parties agree that any bargaining unit member that previously served in the rank of officer or sergeant for the City may return to the highest rank within the bargaining unit that such individual previously held, whether at the will of the employee or at the direction of the City. If the City wishes to terminate any such employee, the employee will have the right to grieve said termination pursuant to the Officers and Sergeants’ CBA. In the event that a terminated lieutenant who previously served as an officer or sergeant with the City prevails in his/her arbitration pursuant to the Officers and Sergeants’ CBA, the arbitrator may only reinstate that person to the position of officer or sergeant.

¹ The use of the words “as may be amended from time to time” when referencing the 2012 EPPM throughout this Agreement are not intended by the parties to constitute a waiver of the right to impact bargain any changes to the 2012 EPPM that are permissive subjects of bargaining. The Employer shall make no unilateral changes to the EPPM that are otherwise mandatory subjects of bargaining.

ARTICLE 4
NON-DISCRIMINATION

1. The parties agree that the race, color, sex, national origin, religion, age, handicap, disability of a qualified individual with a disability, or marital status of one or more unit employees shall not be considered in any decision which requires the interpretation or application of this agreement.
2. The City and the PBA oppose discriminatory behavior of any nature. The City and the PBA shall work jointly to identify and eradicate discriminatory conduct in the work place.

ARTICLE 5
MANAGEMENT RIGHTS

1. It is the right of the City to determine unilaterally the purpose of the police department, set standards of services to be offered to the public, and exercise control and discretion over its organization and operations. Nothing in this Agreement constitutes or shall be interpreted to constitute a waiver or limitation on management rights provided for in Sec. 447.209, Florida Statutes.

ARTICLE 6
PBA BUSINESS

1. PBA representatives will be permitted to engage in representation activities on behalf of the PBA or any member on duty as follows:
 - A. Engaging in collective bargaining with the representatives of the CITY.
 - B. Processing of grievances.
 - C. Accompany a fellow employee when:
 1. The employee is required to appear at a hearing related to a grievance.
 2. The employee is presenting or responding to a grievance.
 3. The employee is subject to interrogation in conjunction with an internal affairs investigation or administrative inquiry.
2. PBA Representatives shall be allowed to communicate official PBA business to members prior to on-duty roll call.
3. The City agrees to allow the PBA and its representatives reasonable access to the City premises for conducting PBA business with prior approval of the Chief, if such business will not disrupt routine operations. For the purposes of this paragraph, PBA business shall not include political activities such as interviewing candidates or making decisions on which candidates the PBA will support in an election.
4. No employee shall engage in PBA business while on duty except as referenced in this Article.
5. An on-duty lieutenant may attend collective bargaining sessions with the consent of the Chief or his designee. Denial of a request may not be grieved.

ARTICLE 7
BILL OF RIGHTS INTACT

1. Nothing in this Agreement shall abrogate or limit the rights of a police lieutenant as set forth in Part VI of Chapter 112, Florida Statutes, as amended from time to time.

ARTICLE 8

PAYROLL DEDUCTIONS

1. PBA members may authorize payroll deductions for the purpose of paying PBA dues. Any member of the PBA who has submitted a properly executed dues deduction form to the City Manager or his or her designee may have his or her membership dues in the PBA deducted from his or her wages. No authorization shall be allowed for payment of initiation fees, assessments, or fines. Payroll deductions shall be revocable at any time upon request by the employee to the CITY and PBA in writing. The payroll deduction cancellation shall be effective thirty (30) days after receipt of notice revocation.
2. Dues deducted shall be transmitted to the PBA on a monthly basis, accompanied by a list of those employee's names whose dues are included.
3. It shall be the responsibility of the PBA to notify the City Manager or his designee, in writing of any change in the amount of dues to be deducted at least thirty (30) days in advance of said change.
4. The PBA shall indemnify, defend and hold the City harmless against any and all claims, suits, orders, and judgments brought and issued against the City as a result of any action taken or not taken by the City under the provisions of this Article.
5. The employee's earnings must be regularly sufficient, after other legal and required deductions are made, to cover the amount of appropriate PBA dues. When a member is in a non-pay status for an entire pay period, dues deduction from future earnings may not be made to cover that pay period. In the case of an employee who in non-pay status during only part of the pay period, if available wages are not sufficient to cover the full dues deduction, no deduction shall be made. In this connection all legally required deductions have priority over dues.
6. The PBA shall pay to the City a one-time administration fee of \$3.00 for each PBA dues paying unit member, which represents the City's reasonable costs incurred in administering the dues deductions process. Payment shall be in the form of a deduction from the September remittance of dues by the City to the PBA.

ARTICLE 9
BULLETIN BOARD AND EMAIL

1. The PBA may place a bulletin board in the Police Department. The bulletin board shall be no larger than 36" by 48" in size and placed in a location approved by the Police Chief. The purpose of the bulletin board is for the posting of official for PBA business, including but not limited to:

- A. Notice of PBA meetings;
- B. PBA elections;
- C. Reports of PBA committees;
- D. Rulings or policies of the PBA;
- E. Recreational and social affairs of the PBA;
- F. Notices by public bodies.

2. The PBA assumes all liability for claims or actions arising from material posted on the bulletin board.

3. The PBA shall not use the bulletin board to post political endorsements including, but not limited to, the support or opposition to any candidate for public office or the support or opposition to any political cause. To facilitate PBA communications with members of the bargaining unit, the City will allow the PBA to distribute mail and other communications in each Employee's mailbox, and via their City email addresses; however, employees are cautioned that the City network is subject to monitoring by the City and employees should have no expectation of privacy when they send or receive email via the City network.

4. The PBA or any member of the bargaining unit shall not post any notice or other document or material which directly or indirectly disparages or criticizes the CITY OF DORAL or any elected or appointed official or employee of the City.

5. The City shall notify the PBA of any improper usage of the bulletin board.

ARTICLE 10
PERSONNEL RECORDS

1. Personnel records shall be maintained and made available in accordance with Florida Public Record laws as set forth in Chapter 119, Florida Statutes.
2. The City will advise an employee when the City has received a written request for the employee's personnel records.

ARTICLE 11

OFF DUTY ASSIGNMENT

1. All off-duty details require prior written approval by the Chief of Police or his designee. Prior to the submission of a request for approval to the Chief or his designee for an off-duty detail each request for approval shall be accompanied by an Off Regular Duty Service Permit Application signed by the third party employer, in the form approved by the City.
2. The City agrees that all authorized off regular duty police work (off-duty) is compensated at the base rate of \$65.00 per hour for police lieutenants working in that capacity. These rates may be adjusted upwards periodically by the Chief of Police, in his sole discretion, to remain competitive with other Police Agencies. The minimum time charge will be four (4) hours at the appropriate rate. Off-duty work shall be limited sixty-four (64) hours each bi-weekly period.
3. Employees who are injured as a result of police action or while affecting an arrest while on an off-duty job shall be entitled to the same rights, privileges and workmen's compensation benefits as if injured on regular duty, and shall be permitted to utilize a City police uniform, radio and vehicle. For such usage, the City shall receive contractual service charges as set forth in Procedural Directive 9.3.
4. Details shall be assigned only to those lieutenants who are off duty and no lieutenant shall accept any off-duty detail when it interferes with his/her normal working hours.
5. All police lieutenants engaged in off-duty details shall be permitted to wear an official Bargaining Agent pin signifying that the lieutenant is engaged in off-duty employment.
6. Each lieutenant, while working off-duty details, shall adhere to all policies, rules and regulations of the City Police Department. Any misconduct or breach of policies, rules and regulations will be handled through the Department the same as any on-duty activity.
7. Any police lieutenant who is on sick leave, workers' compensation or working light duty will not work any off -duty detail during that period.
8. Any detail that requires five (5) or more police officers shall have one (1) police supervisor. If a police supervisor is not available, the senior police officer shall be in charge.
9. The provisions of Procedural Directive 9.3 are applicable to off duty details except to the extent that they conflict with the provisions of this Article, in which case the provisions of this Article shall control.

10. No employee may work an off-duty detail during any period of civil emergency as declared by the City Manager.
11. Payment for off-duty or special detail work performed on behalf of a second party employer will be treated as compensation or salary for pension calculation purposes.
12. The City may unilaterally adjust the rates charges to second party employers for off duty detail services provided the current hourly rate paid to any lieutenant who works a detail is not reduced.

ARTICLE 12
LEGAL BENEFITS

1. The legal benefits for members against whom civil damage suits are brought for matters arising while acting within the scope of their authority and within the course of their employment shall be as provided by the policies of insurance relating thereto and the provisions of Section 111.065, Florida Statutes, as amended from time to time.

ARTICLE 13
DRUG FREE WORKPLACE

1. Bargaining Unit Members are subject to the City's DRUG AND ALCOHOL FREE WORKPLACE PROGRAM procedures and may be tested for reasonable suspicion, randomly, or following an accident or injury testing.
2. Notwithstanding the provisions contained in the 2012 EPPM, all members of the bargaining unit, at the discretion of the Chief of Police, and/or the City Manager will be randomly tested for drugs. The selection of the employees to be tested will be made using a neutral software selection program, and shall be no greater than twenty five percent (25%) of the members every six (6) months. Lieutenants shall be provided with the results of all drug tests.

ARTICLE 14
TAKE HOME VEHICLES

1. Beginning on October 1, 2025, Bargaining Unit Members shall not be required to pay the City a vehicle usage fee.

At 12:00 a.m. on September 30, 2028, Bargaining Unit Members' vehicle usage fee will revert to the following:

A. Miami-Dade County residents pay \$50.00 per month. Doral residents pay nothing.

B. Broward residents pay \$100.00 per month.

2. Employees who are involved in vehicular accidents, regardless of who caused the accident, will lose his/her take home car benefit until the vehicle is fully repaired and returned to service unless there is a pool car available.

3. Employees who do not reside in either Miami-Dade or Broward County shall not be provided with take home vehicles.

4. Employees who do not have any preventable crashes in a fiscal year shall be awarded a Safe Driving Credit equivalent to one (1) full shift of administrative time. That administrative time must be used by end of next fiscal year.

5. Bargaining Unit Members shall be assigned unmarked vehicles, which they are authorized to use in Miami-Dade and Broward Counties for personal use.

ARTICLE 15

COMPENSATORY TIME OFF

1. Employees may earn, in lieu of payment of overtime, compensatory time off at the rate of time and one-half for overtime hours worked. Whether to pay overtime or award compensatory time off in each instance is at the discretion of the City.
2. Compensatory time is capped at 240 hours. Unused compensatory time off shall be paid out by the City each year on or before September of that year.
3. Employees may not use compensatory time during any period of civil emergency as declared by the City Manager.
4. Upon separation of employment, unused compensatory time shall be paid at the officer's rate of pay at the time of separation.

ARTICLE 16
HEALTH CARE BENEFIT

1. The City maintains one health care insurance program for the benefit of all employees of the City. Bargaining unit employees may enroll in the City's health care program, as it is amended from time to time, subject to the same terms and conditions as non-bargaining unit City employees.

2. Effective on the first of the month following ratification of this Agreement, bargaining unit members shall be eligible for paid parental leave in accordance with the City's Parental Leave Policy for so long as that policy remains effective for the City's unrepresented employees.

3. All full-time sworn personnel retiring after reaching the age of at least fifty-two (52), shall receive the following health benefits until reaching the age sixty-five (65):

Years of Service With Doral	Monthly Benefit Amount
30 yrs. or more	\$165.00
25 yrs. or more	\$140.25
20 yrs. or more	\$115.50

4. All full-time sworn personnel hired in 2008 and at least sixty (60) years of age upon retiring will receive a Monthly Benefit Amount of one hundred sixty-five and 00/100 dollars (\$165.00) until reaching the age of sixty-five (65).

ARTICLE 17
EDUCATIONAL ASSISTANCE

1. The City agrees to establish a tuition reimbursement program for employees in an effort to encourage the upgrading of the educational level of its law enforcement personnel. The conditions and requirements of the program are the following:

A. Tuition reimbursement is contingent on the annual appropriation of funds by the City Council. Notwithstanding the inclusion of this Article, the City Manager is not obligated to submit an annual budget to the City Council which includes funding for tuition reimbursement.

B. The employee must have prior approval of the Police Chief and must be registered in a course related to the law enforcement field and advancing toward a law enforcement or law enforcement-related degree, including A.A., A.S., B.A., B.S., M.A. or M.S. at an institution of higher education accredited by the Council for Higher Education Accreditation to be eligible for tuition reimbursement.

C. In order to obtain financial reimbursement for tuition costs the employee must:

1. successfully complete the course with a minimum grade of "A", "B", "C" or "Pass" in Pass-Fail courses.

2. remains in the City's employment for at least two years from the date of course completion. Upon voluntary termination of employment by an employee, the employee shall reimburse the City for all tuition fees paid by the City during the last two (2) years of the employee's employment;

3. submit appropriate documentation to the Police Chief within thirty (30) days from receipt of grades. Such documents shall include copies of said receipts for payment of said tuition fees, and copies of proof of minimum passing grade.

D. Tuition reimbursement shall be at a State of Florida public university or college rates, regardless of whether the school is private or public, as follows:

50% for "A", "B", "C", or "Pass if Pass/Fail grading.

2. The courses will be approved only if the City has funds in its budget for educational assistance in the budget year in which the payment will be due. The Police Chief in consultation with the Human Resource Director will make that determination.

3. Should any City employees, excluding directors, City Attorney, Assistant City Manager and City Manager, negotiate or receive an educational assistance benefit that exceeds the benefits of this Article, then those benefits shall extend to this bargaining unit.

ARTICLE 18
UNIFORMS AND EQUIPMENT

1. All sworn personnel required to wear uniforms shall be assigned uniforms in accordance with departmental policy. A list of uniform and equipment is attached as Exhibit A.
2. When an employee is in court or in any way representing the City in any official capacity, he/she shall dress in accordance with the department's uniform policy.
3. All items above shall be and remain the property of the City. All such items shall be kept clean and neat at the expense of the user/employee.
4. All other equipment shall be paid for by the Employee.
5. Any City-issued equipment or uniform component which is worn out, torn or damaged while the Employee is acting within the scope of his employment shall be replaced by the City at no expense to the Employee.
6. Any approved personal equipment lost or damaged in the line of duty and not as a result of the Employee's negligence shall be reimbursed by the City to the amount of actual replacement cost, not to exceed \$200.00 for each item. Approved personal equipment is only as follows:
 - Watch
 - Prescription sunglasses
 - Prescription eyeglasses
7. All clothing and equipment owned by the City shall be turned over to the City in good condition upon cessation of employment for any reason, as a condition to receipt of the final pay disbursement.
8. Employees assigned to CIB and Internal Affairs shall receive a \$75.00 biweekly non-uniform allowance.

ARTICLE 19
PAID TIME OFF (PTO)

1. Full-time sworn employees will be offered paid time off (PTO) that can be used for any reason without accrual limits. Sworn employees do not accrue sick, personal or vacation time in addition to PTO.
2. Forty (40) hours of PTO shall be added to the employee's PTO balance on the anniversary of the employee's hire date every year thereafter.
3. Additionally, sworn employees shall accrue PTO at the following rate:

Years of service	Days per year	Hours per year	Bi-weekly accrual
0-4	25	200 (includes 40 hours credited on anniversary date)	6.15 hours
5-9	30	240 (Includes 40 hours credited on anniversary date)	7.68 hours
10 or more	35	280 (Includes 40 hours credited on anniversary date)	9.23 hours

4. PTO shall not be earned or accrued by an employee during leave of absence without pay, suspension, or when the employee is otherwise on a non-pay status.
5. Upon separation from employment, bargaining unit employees employed by the City for three (3) or more continuous years will be paid for their accrued PTO and holiday time at the employee's regular rate of pay at time of separation as specified in the below chart. Employees with less than three (3) years of continuous service will forfeit PTO and holiday time accruals.

Years	PTO and Holiday Time Payout	Maximum Hours Payout
3	No cap	300 hours*
4	No cap	350 hours*

*Should the employee's compensatory leave bank exceed these limits, they shall be paid out for all accrued compensatory leave, but no other PTO or Holiday leave as the payout of compensatory leave alone otherwise exceeds the maximum hours payout.

Years	PTO and Holiday Time Payout
5 or more	Up to 400 hours total

For employees with 5 or more years of service, accrued compensatory time shall be paid out up to 480 hours in accordance with Article 15 of this Agreement, in addition to the PTO and Holiday Time Payout limit.

All PTO and Holiday hours in excess of the above maximums will be forfeited upon separation.

ARTICLE 20
BEREAVEMENT LEAVE

1. Upon approval of the City Manager, full-time employees may, upon request, be granted time off with pay not to exceed four (4) consecutive working days in the event of a death in their immediate family. The employee's immediate family shall be defined as the employee's spouse, father, mother, step-parents, natural, step and adopted children, brother, sister, father-in-law, mother-in-law, grandparents, brother-in-law and sister-in-law, grandparents-in-law. With approval by the City Manager, additional time off can be granted but will be charged to vacation.

ARTICLE 21
WORK SCHEDULE, PAY PERIOD,
AND OVERTIME COMPENSATION

1. Work Period – The work week of bargaining unit employees shall be forty (40) hours of work per week, comprised of either 8 or 10 hour days, or eighty (80) hours bi-weekly comprised of 11.5 hour days. The determination of who and how many members are assigned to each shift remains a management decision. All authorized hours worked in excess of their work period (40 or 80 hours) shall be considered overtime work, and paid at one-and-one-half times the regular rate of pay. The Chief, at his discretion, may alter the work schedule of an individual officer assigned to the 11.5 shift schedule in times of operational necessity as determined by the Chief.
2. Time in pay status is actual hours on duty and compensatory time shall be termed “hours worked”.
3. All hours worked by employees, and all straight time compensation and overtime compensation will be recorded, calculated and paid on the basis of actual hours worked in pay periods and work periods.
4. No time not actually worked shall constitute hours worked for Fair Labor Standards Act purposes. All record keeping shall be in accordance with the requirements of the Fair Labor Standards Act and the above-referenced regulations. The manner of record keeping shall be at the City's discretion. Time spent in Court Time status and Call Back status are included as hours actually worked.
5. Utilization of overtime, assignment of overtime and selection of personnel to work overtime shall be for both scheduled and non-scheduled work, and shall be done at the discretion of management. Management shall make reasonable efforts to distribute available overtime fairly to those officers wishing to receive the overtime.
6. An employee shall not place themselves in an overtime status without the express approval of a supervisor, except under emergency conditions, or as otherwise provided by departmental policy.
7. The City may flex an employee’s work schedule to reduce or eliminate overtime in a work cycle. No employee’s time will be flexed more than twice in a yearly quarter.

ARTICLE 22
POLITICAL ACTIVITY

1. Employees in the bargaining unit shall be prohibited from engaging in political activity such as, but not limited to, campaigning, soliciting, making speeches, or making appearances at political functions, while on duty, in uniform, or otherwise acting within the scope of employment.

ARTICLE 23
GRIEVANCE AND ARBITRATION PROCEDURE

1. A grievance is defined as a dispute involving the interpretation or application of the collective bargaining agreement. Appeals of disciplinary action will be handled pursuant to Article 25, Disciplinary Appeals.

2. It is agreed, with respect to this grievance and arbitration procedure, that:

A. A time limit at any stage of the grievance procedure may be extended by written mutual agreement of the PBA and the City Manager. No extension of time shall be inferred by any conduct or by verbal exchanges between the parties.

B. All grievances shall be dated and signed by a PBA representative. Any decision rendered shall be in writing and shall be dated and signed by the City's representative at that step.

C. The City shall not be required to process a grievance and that grievance shall not be forwarded to arbitration unless the grievance contains all of the following:

1. a reasonably detailed statement of the grievance and facts upon which it is based;
2. the section or sections of this agreement claimed to have been violated;
3. the remedy or correction requested.

D. All grievance hearings will be conducted during normal business hours.

E. Any grievances filed on behalf of or for the benefit of multiple employees may be filed as an "Association Grievance".

F. Should an employee file a grievance without the aid of the PBA, notice of the filing of the grievance and each step thereafter shall be provided to the PBA, and a PBA representative shall be present at the Step 1 and Step 2 meetings.

3. Grievances will be processed in the following manner and strictly in accordance with the following stated time limits.

Step 1: The PBA shall present the grievance, in writing, to the Police Chief, within 14 days of the act or omission which gave rise to the grievance. If both parties agree, the Police Chief shall, within 14 calendar days of receipt of the written grievance, conduct a meeting with the PBA. The Police Chief shall notify the PBA in writing of the decision not later than 14

calendar days following the meeting date, or not later than 14 days of filing grievance if no meeting is held. The failure to respond shall be deemed a denial of the grievance.

Step 2: If the grievance is not fully and conclusively resolved at Step 1, the PBA, within 14 calendar days of receipt of the answer provided in Step 1, may forward a copy of the original written grievance to the City Manager with a separate cover letter stating that the grievance is being advanced to Step 2. If both parties agree, the City Manager shall hold a meeting with the PBA regarding the grievance. The City Manager shall notify the grievant and the PBA of the City Manager's decision within 14 calendar days following receipt by the City Manager of the grievance, or not later than 14 days after the filing of the grievance at Step 2 if no meeting is held. The failure to respond shall be deemed a denial of the grievance.

4. If the grievance is not resolved by the foregoing grievance procedure, the PBA, within fourteen (14) calendar days after the City Manager's decision in Step 2, may give to the City Manager a written notice of its desire to submit the matter to arbitration; said written notice to include a written statement of the position of the PBA with respect to the unresolved grievance. No grievance shall proceed to arbitration without the PBA's approval.

5. Within fourteen (14) calendar days from receipt of such notice, the parties shall confer to select an arbitrator. In the event the parties fail to agree on an arbitrator, both parties shall, within fourteen (14) calendar days, jointly request a list of seven (7) qualified arbitrators from the American Arbitration Association or the Federal Mediation and Conciliation Service. Each party shall have the right to strike one list in its entirety and if a party strikes such list shall pay the cost of requesting another list of seven (7) qualified arbitrators from the American Arbitration Association or the Federal Mediation and Conciliation Service. The PBA and then the City will alternately eliminate one at a time from said list the names of persons not acceptable until only one remains and this person will be the arbitrator. The City and the PBA will alternate in the right to first strike arbitrators.

6. As promptly as possible after the arbitrator has been selected, he shall conduct a hearing between the parties and consider the grievance. The decision of the arbitrator will be served upon the City and the PBA in writing. It shall be the obligation of the arbitrator to rule within thirty (30) calendar days after the hearing. The expense of the arbitration, including the fee and expenses of the arbitrator, will be paid equally by the parties. Employees subpoenaed by the

PBA to attend an arbitration hearing, if on duty, shall be released from duty and may attend the hearing with pay for their duty hours.

7. The submission to the arbitrator shall include the written grievance as submitted in Steps 1 and 2 of the grievance procedure, and shall include a copy of this agreement.

8. The power and authority of the arbitrator shall be strictly limited to an interpretation of the express terms of this agreement. He shall not have the authority to add to or subtract from or modify any of said terms, or to limit or impair any right that is reserved by this agreement to the City or the PBA or the employees, or to establish or change any wages or rate of pay in this agreement.

9. No decision of any arbitrator or of the City in one case shall create a basis for retroactive adjustment in any other case.

10. The arbitrator shall have authority to determine any claim for back pay.

11. The decision of the arbitrator shall be final and binding on both parties, and the grievance shall be considered permanently resolved, subject to any judicial relief available to either party under Florida law.

12. The arbitrator will retain jurisdiction for a period of a minimum of thirty (30) day following issuance of the arbitrator's decision to address post-ruling disputes or requests for clarification.

13. The arbitrator shall not be bound by a prior arbitrator's decision or award although the arbitrator may give it such weight as they deem proper.

ARTICLE 24
APPEALS OF DISCIPLINARY ACTION

1. A termination may, at the sole discretion of the City Manager be “at will” with no statement of cause, or “for cause.” If a termination is “at will,” the decision of the City Manager is final and not subject to appeal (subject to the provisions of Article 3 of this CBA).

2. No employee shall be subject to discipline involving the loss of compensation without first being afforded a pre-determination conference with the City Manager. If an employee wishes to participate in a pre-determination conference, he/she must request such a conference within seven (7) days of his/her receipt of the notice of discipline. No pre-determination conference shall be conducted with less than ten (10) calendar day notice to the employee.

3. Appeals of disciplinary action shall be handled via Article 23 of this Agreement, except that the last level of appeal shall be Step 2 of that Article and the City Manager’s decision at that step shall be final and binding (subject to the provisions of Article 3 of this CBA).

4. Unless the transfer expressly references discipline, or there is clear evidence that it is inextricably intertwined with discipline, the transfer shall be considered non-disciplinary.

5. Where the City imposes a transfer in connection or inextricably intertwined with or as a result of disciplinary action, the transfer shall be considered disciplinary in nature and subject to the grievance and arbitration procedures set forth herein.

A. In such cases, both the transfer and the related discipline may be grieved and, if unresolved, appealed to arbitration, regardless of whether the underlying discipline is classified as major or minor. The arbitrator shall have full authority to sustain, reverse, or modify both the discipline and the transfer.

B. In arbitration, the City shall bear the burden of proof that both the discipline and the transfer were for just cause.

C. A transfer imposed in conjunction or inextricably intertwined with minor discipline shall be deemed “no longer in effect” after two (2) years of discipline-free service to the City. At such time, neither the transfer nor the underlying discipline shall be used by the City in any manner, including but not limited to progressive discipline, promotion, transfer, or as evidence in a subsequent disciplinary hearing, and the employee shall have the right to request reassignment to a comparable position, subject to operational needs.

6. Use of GPS or Body Worn Camera (BWC) evidence may be used for discipline in the following situations:

- A. To substantiate an external complaint.
- B. Discipline for a use of force.
- C. Information on GPS/BWC resulting from a records request, but only where the GPS/BWC evidence discovered could result in a suspension or greater.
- D. Information from GPS/BWC gathered from monthly audits which shall be a computer-generated randomly selected BWC footage of a single case per officer.

7. In addition, failure to activate a BWC, properly retain or store recordings, or turning off the system in anticipation of a response to resistance of other confrontational citizen contact, may result in discipline. Other than monthly audits referenced above, GPS/BWC evidence cannot be gathered through the random pulling of GPS/BWC evidence.

8. Employee Option/Time in Lieu of Suspension

Employees may forfeit equivalent time in lieu of suspension by using annual, compensatory or holiday leave. Employees electing to do so shall waive the right to any further appeal action.

ARTICLE 25
MILITARY LEAVE

1. The City shall comply with all laws on military leave which affect unit employees.

ARTICLE 26
CALL BACK PAY

1. When the Police Department requires an employee to report for work when the lieutenant is not scheduled to work, the lieutenant is guaranteed at the lieutenant's regular rate of pay either three hours compensation or the amount of time up to when employee shift starts, whichever is less. Any time worked beyond the three-hour minimum will also be compensated at the lieutenant's regular rate for actual time worked but all call back hours worked count towards the calculation of hours worked for overtime purposes.
2. No employee is eligible for call back pay during a period of civil emergency as declared by the City Manager.

ARTICLE 27
ON-CALL PAY

1. No employee is eligible for on call pay.

ARTICLE 28
COURT APPEARANCE PAY

1. An employee required to attend court or a court related hearing, such as a deposition, for purposes directly related to the performance of his duties as a police officer during scheduled off-duty hours shall be compensated three (3) hours of pay for all appearances commencing during the three (3) hour period, provided that the start of the three (3) hour period is more than sixty (60) minutes prior to his regularly assigned shift or more than sixty (60) minutes after his regularly assigned shift.

a. Multiple appearances commencing during the three (3) hour period shall be paid on the basis of a single three (3) hour guarantee.

b. The employee will be compensated from the time the first appearance begins until three (3) hours later or when released by proper judicial authority if the release extends past the three (3) hour period.

c. An employee required to attend any court appearance starting within the three (3) hour period and extending beyond this period shall be paid for the three (3) hours plus all time spent beyond the three (3) hours until released.

2. An employee required to attend court or a judicial hearing after he has been released from a guaranteed three (3) hours shall be guaranteed a minimum of one (1) hour of pay. The same rules shall apply as covered in Section 1 of this Article.

3. All hours mentioned in Section 1 and Section 2 of this Article shall be paid at the employee's overtime rate of pay.

4. An employee attending court or a judicial hearing sixty (60) minutes or less prior to his regularly assigned shift will be placed on on-duty status. Likewise, an employee attending court or a judicial hearing within sixty (60) minutes after his regularly assigned shift shall remain on duty until released by the proper judicial authority or released from duty.

5. Compensation paid by the state, county or other person, firm, or authority which compels attendance must be endorsed and tendered to the City by the affected employee as a condition of being paid by the City.

ARTICLE 29
COMPENSATION

1. The Merit Step Retention Plan for all members is attached hereto as Exhibit B. As articulated in the Merit Step Retention Plan, members shall receive a COLA of 8% beginning October 1, 2025; 3.5% beginning October 1, 2026; and 3% beginning October 1, 2027. If civilian employees receive a larger COLA than the members in either fiscal year 2026-2027 or 2027-2028, either party may reopen the contract to solely discuss COLA for that fiscal year.
2. Eligible employees will receive their step increase on their anniversary date, which shall be merit based, requiring a minimum overall rating of “satisfactory” or above on their performance evaluation. Bargaining unit members receiving less than a “satisfactory” will not receive a step increase on their anniversary date. Such employee shall be reevaluated via a Personal Improvement Plan (PIP) in six (6) months to determine eligibility for a step increase at that time. Step increases that have been deferred shall not be granted retroactively and a new evaluation date is issued.
3. Employees reaching the following milestones of years of continuous service to the City shall receive the following longevity bonuses on their anniversary dates:

Years of Completed Full-Time Continuous City Service	Percentage Payment of Base Salary
15	1.5%
16	1.6%
17	1.7%
18	1.8%
19	1.9%
20	2.0%
21	2.1%
22	2.2%
23	2.3%
24	2.4%
25	2.5%

26	2.6%
27	2.7%
28	2.8%
29	2.9%
30	3.0%
31	3.1%
32	3.2%
33	3.3%
34	3.4%
35 or more	3.5%

ARTICLE 30
ON-THE-JOB INJURY

1. All municipal employees are covered by Workers' Compensation Laws and are entitled to benefits as provided and limited by such laws
2. The City will maintain the status quo regarding supplementing a law enforcement officer's Worker's Compensation benefit paid by the State.

ARTICLE 31 HOLIDAYS

1. The following holidays shall be observed consistent with this Article:

New Year's Day

Martin Luther King's Birthday

Presidents Day

Memorial Day

Juneteenth

Independence Day

Labor Day

Columbus Day

Veterans' Day

Thanksgiving Day

Friday after Thanksgiving

Christmas Day

Two Personal Days

Birthday

2. All members shall receive eight (8), ~~or~~ ten (10), or eleven and one-half (11.5) hours of holiday pay or time for the above recognized holidays based upon their assigned schedule. Members shall not receive any other compensation for the designated holiday; whether they are on or off-duty on the actual holiday is immaterial.

3. Hours worked on a holiday will not be calculated into overtime accrued during the week of the holiday.

4. Employees given holiday work assignments who fail to report for and perform such work for any reason other than verified illness or emergency, shall not receive pay for the unworked holiday and may be subject to disciplinary action.

5. If an employee is on authorized leave when a holiday occurs, that holiday shall be charged to holiday leave and not to paid time off or other leaves.

6. All members shall receive sixteen (16), twenty (20), or twenty-three (23) hours of personal days based upon their assigned schedule. In addition, the personal days must be taken before the end of the fiscal year. All members shall receive eight (8), ten (10), or eleven and

one-half (11.5) hours of birthday based upon their assigned schedule. The birthday hours are issued at the beginning of the fiscal year (October 1st) and must be taken before the end of the fiscal year (September 30th).

ARTICLE 32
SENIORITY

1. Seniority shall consist of continuous full-time service with the City as a Lieutenant. Seniority shall accumulate only during absence because of illness, injury, vacation, military leave or other authorized leave. Seniority shall not accumulate during suspensions without pay and authorized leaves of absence of more than two (2) consecutive weeks without pay. Seniority shall be a factor in determining the following matters:

- A. Vacations for each calendar year.
- B. Shift assignments and the assignments of days off for road lieutenants only.

ARTICLE 33
SHIFT EXCHANGE

1. Upon application through the chain of command, shift exchanges may be granted and shall not be unreasonably withheld provided that:

A. It is requested and approved sufficiently in advance so as not to work a hardship on either employee or Employer.

B. It does not interfere with the regular operation of the department.

C. For such voluntary and approved exchanges, the hours involved in the shift exchange trading of time between employees, as provided in Fair Labor Standards (FLSA), are not additional payroll hours for either employee; and do not increase any overtime over the amounts the employees would have otherwise been due if the substitution had not taken place.

2. City will notify the employee at least two (2) weeks in advance of any contemplated change in an employee's status, e.g., transfer, reassignment or change of shift. The employee may waive advance notice without violating this Article.

ARTICLE 34
RETIREMENT BENEFIT (401a)

1. Sworn employees are entitled to retirement benefits from the Florida Retirement System (FRS). This is a defined benefit plan where employees do not make contributions to their retirement.
2. The City also offers a supplemental 457 deferred compensation plan where the employee makes contributions to his retirement, but the City does not make any contributions, except as provided below.
3. The City will not contribute the difference between the special risk rate and the regular class rate into the employee's 401a retirement account for sworn personnel hired after June 24, 2010 who have retired under the FRS and are no longer eligible for the "special risk" retirement and who receive regular class rate contributions to their FRS plan. Those employees who were receiving the difference between the special risk rate and the regular class rate prior to June 24, 2010 will continue to receive the difference into the employee's 401a retirement account.

ARTICLE 35

ACTING RANKS

1. Any employee who is designated to act in a rank higher than his permanent rank and who actually performs the duties of the higher rank for at least two (2) consecutive work days shall receive 5% increase to his/her salary for the time spent in such capacity.

ARTICLE 36

DIFFERENTIALS, AND INCENTIVES AND SPECIALTY UNIT PAYS

1. Employees who are working an 11.5 hour schedule and start their shift at 5:00 p.m. or after, will be paid an additional 10% of their base rate of pay for each hour worked on those shifts.
2. Members assigned to either a 5 day 8 hour schedule or a 4 day 10 hour schedule that starts at 12:00 p.m. or later will be paid an additional 5% of their base pay for each hour worked. Members assigned to either a 5 day 8 hour schedule or a 4 day 10 hour schedule that starts at 9:00 p.m. or later, will be paid an additional 10% of their base pay for each hour worked.
3. Tactical Response Team shall receive two and one-half percent (2.5%) increase in their base pay.
4. Active Instructors/Certified ITW if the Chief has them act in that capacity for any portion of a rolling year shall receive two and one-half percent (2.5%) increase in their base pay.
5. Qualifying Command School (Northwestern, FBI Academy, SPI) shall receive two and one-half percent (2.5%) increase in their base pay total, whether one (1) or multiple schools.
6. Members who are assigned to the patrol section will be paid an additional two percent (2%) of their base rate of pay. All employees assigned to the patrol section who have successfully completed their probation shall receive this patrol pay incentive.
7. All employees shall receive the following-hazard incentive to their base pay:
 - a. For fiscal year 2025-2026 – each employee shall receive an additional two percent (2%) of their base rate of pay;
 - b. For fiscal year 2026-2027 – each employee shall receive an additional one percent (1%) of their base rate of pay for a total of three percent (3%) of their base rate of pay;
 - c. For fiscal year 2027-2028 – each employee shall receive an additional two percent (2%) of their base rate of pay for a total of four percent (4%) of their base rate of pay.
8. Employees who are assigned to the mounted patrol unit will be paid an additional five percent (5%) of their base rate of pay. All employees assigned to the mounted patrol unit who have successfully completed their probation shall receive this mounted unit pay incentive.
9. Employees who are assigned full time in the K-9 or Traffic Section shall receive a five percent (5%) increase in their base pay as specialty unit pay. In addition, the Motors Unit shall receive ten (10) additional PTO hours per quarter.

10. Field Training Officers and Sergeants shall receive a five percent (5%) increase in their base pay during their time assigned to the Field Training Squad.
11. Community Outreach Position shall receive five percent (5%) increase in their base pay.
12. CIB shall receive five percent (5%) increase in their base pay.
13. Members who do not receive patrol pay in paragraph 6 of this Article, or any of the specialty pays in paragraphs 8-12 of this Article will receive a 2% increase in their base rate of pay.

NOTE: Maximum supplemental pay, including additional compensation, is maxed out at ten percent (10%). This does not include the additional base rate of pay for shift differentials, patrol pay and hazard pay in paragraphs 2, 6 and 7 of this Article, respectively.

ARTICLE 37

LONGEVITY STEPS FOR MAXIMUM RATE OF SALARY RANGE

1. Longevity Step 1 – a separate longevity step will be made for employees when they have completed three consecutive years of service at the maximum rate of the salary range. Such advancement will be one pay step beyond the maximum rate, which equals 3%.

2. Longevity Step 2 – a separate longevity step will be made for employees when they have completed three consecutive years of service at Longevity Pay Step 1 of the salary range. Such advancement will be one pay step beyond longevity step 1, which equals 3%.

ARTICLE 38 EMPLOYMENT OF RELATIVES

This policy supersedes the Employee Policies and Procedures Manual for employment of relatives.

A. PURPOSE

The City of Doral is committed to maintaining an environment in which employment, development, and career advancement take place in a professional atmosphere of mutual respect and trust. While the City respects the privacy of its members, we recognize that there exists the opportunity for the inappropriate use of power, trust or authority. Certain relationships in the work setting have the potential to compromise, or appear to compromise, the fairness and objectivity of employment decisions and the discharge of other professional duties. This policy is intended to promote employment decisions and conduct in the work setting that avoids a conflict of interest, appearance of favoritism, abuse of power, or potential for a hostile work or academic environment.

B. DEFINITIONS

The following words, terms and phrases, when used in this policy shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

“Employee” means every person engaged in any employment with the city under any appointment or contract of hire, express or implied, oral or written, for remuneration, including without limitation all full-time, part-time, seasonal, permanent and temporary employees.

“Public official” means an officer or an employee of the City in whom is vested the authority by law, rule, or regulation, or to whom the authority has been delegated, to appoint, employ, promote, or advance individuals or to recommend individuals for appointment, employment, promotion, or advancement in connection with employment at the City. “Public Official” includes, but is not limited to, the City Manager, Deputy City Manager, Department Heads and any managers or supervisors who are delegated authority to recommend individuals for appointment, employment, promotion, or advancement.

“Relative” means an individual who is related to the public official or employee as father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law,

stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half- brother, half-sister, registered domestic partner, and child of a registered domestic partner.

C. RESTRICTIONS AND CONDITIONS

1. Employees have the responsibility to notify their supervisor or department head of any potential or existing relationship which falls under the definitions provided in this policy.

Employees who fail to disclose personal relationships covered by this policy will be subject to disciplinary action up to and including termination of employment.

2. Relatives of an officer will be considered for employment on the basis of their background and qualifications with the approval of the Chief of Police.

3. When a relative is employed, the Department will not allow the employment to create a direct supervisor-subordinate reporting relationship between the relative and the current employee and the employee-relative cannot transfer into a reporting relationship with each other.

ARTICLE 39
CONFLICTING PROVISIONS

1. If any article of this agreement or any portion of any article is ruled to be illegal or otherwise invalid, either as to language or application, by any court or other tribunal having jurisdiction of the parties and this agreement, such ruling shall not invalidate the remaining articles and portions of articles of this agreement.
2. In the event that any Article is deemed invalid, the City and the PBA agree to commence negotiation on a replacement Article within thirty (30) days.

ARTICLE 40
ENTIRE AGREEMENT

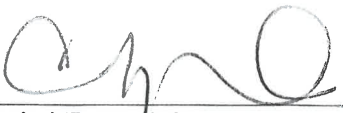
1. This instrument embodies the whole agreement of the parties. There are no promises, terms, conditions, or obligations other than those contained herein; and this contract shall supersede all previous communications, representations, or agreements, either verbal or written, between the parties.
2. In the event of a conflict between this Agreement and the provisions of the 2012 Employee Policies and Procedures Manual (EPPM) as may be amended from time to time, the provisions of this Agreement shall control. In the event a policy or procedure is addressed in the 2012 Employee Policies and Procedures Manual (EPPM) as may be amended from time to time but not addressed in this Agreement, the policy or procedure set forth in the EPPM as may be amended from time to time shall apply to bargaining unit members.
3. Bargaining unit employees are subject to all Police Department rules and regulations.
4. Nothing herein constitutes or shall be interpreted to constitute a waiver by the PBA of the right to receive notice of and the opportunity to bargain over any modification to wages, benefits, or conditions of employment without regard to whether the modification is proposed in the EPPM or otherwise.

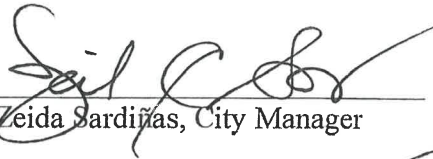
ARTICLE 41
DURATION

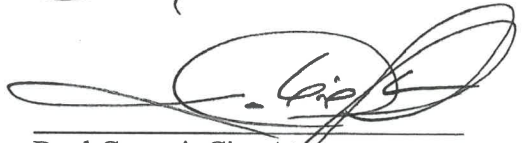
1. This Agreement shall commence on ratification and terminate on September 30, 2028.

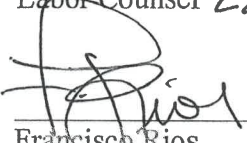
SIGNATURE PAGE

CITY OF DORAL, FLORIDA


Christi Fraga, Mayor


Zeida Sardiñas, City Manager

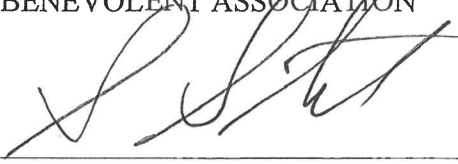

~~Raul Gastesi, City Attorney~~
Labor Counsel *Lorenzo Cabiella*

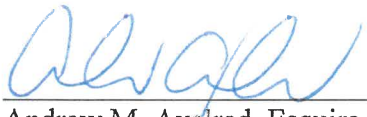

Francisco Rios
Deputy City Manager

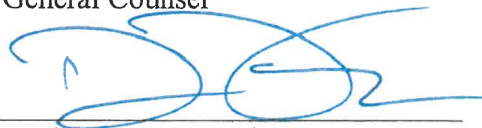

Fernando Casamayor
Chief Financial Officer


John S. Hearn *Public Legal Advisor*

SOUTH FLORIDA POLICE
BENEVOLENT ASSOCIATION


Steadman Stahl, President
South Florida PBA


Andrew M. Axelrad, Esquire
General Counsel


Daniel Vazquez, Esq.
PBA Counsel


Daniel Munecas
PBA Representative

Date of Ratification by the Bargaining Unit: October 8, 2025
Date of Ratification by the City Council: November 12, 2025